

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

-----X
DARVIN NUNEZ

Plaintiff,

-against-

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ANDRE OHARA
SHIELD NO 9433, SERGEANT ROBERT MARTINEZ
SHIELD NO 1369, SERGEANT WILLIAM SCHUMACHER
SHIELD NO 04618, NEW YORK CITY POLICE OFFICERS
JOHN AND JANE DOE #1-10 (intended as police officers
whose names and identifying information are unknown)

Defendants.
-----X

Index No.:

Date Original Summons and
complaint were filed with the
clerk:

Plaintiff designates
KINGS COUNTY as the place
of trial
The basis of venue is location
where the cause of action arose

SUMMONS
Plaintiff resides at:
6227 108th Street
Forest Hills, NY 11375

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Garden City, New York
February 24, 2020

Yours, etc.,



LAW OFFICES OF MITCHELL C. ELMAN,
P.C.

377 Oak Street Suite 415
Garden City, NY 11530
(516)586-6666

Defendant's addresses:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
PO ANDRE OHARA SHIELD NO 9433
SERGEANT ROBERT MARTINEZ SHIELD NO 1369
SERGEANT WILLIAM SCHUMACHER SHIELD No 04618
And New York City Police Officers John and Jane Doe #1-10
One Police Plaza
New York, NY 10038

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
DARVIN NUNEZ,

Plaintiff,

Index No.:

**VERIFIED
COMPLAINT**

-against-

NEW YORK CITY, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER ANDRE OHARA
SHIELD NO 9433, SERGEANT ROBERT MARTINEZ
SHIELD NO 1369, SERGEANT WILLIAM SCHUMACHER
SHIELD NO 04618, NEW YORK CITY POLICE OFFICERS
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whose names and identifying information are unknown)

Defendants.
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Plaintiff, complaining of Defendants, by his attorneys, Law Offices of Mitchell C.
Elman, P.C. respectfully shows to this Court, and alleges upon information and belief, the
following:

STATEMENT OF FACTS

1. That at all times hereinafter mentioned, Plaintiff DARVIN NUNEZ (hereinafter referred to as "NUNEZ") is a resident of Queens County, State of New York.
2. That at all times hereinafter mentioned, Police Officer ANDRE OHARA, (hereinafter "OHARA") Shield Number 9433 was and is employed by the New York City Police Department.

3. That at all times hereinafter mentioned, Sergeant ROBERT MARTINEZ (hereinafter "MARTINEZ") Shield Number 1369 was and is employed by the New York City Police Department.
4. That at all times hereinafter mentioned, Sergeant WILLIAM SCHUMACHER (hereinafter "SCHUMACHER") Shield Number 04618 was and is employed by the New York City Police Department.
5. That at all times hereinafter mentioned, New York City Police Officers John and Jane Doe ("DOE") #1-10 collectively, the officers involved in the arrest of NUNEZ were employed by the New York City Police Department.
6. That at all times hereinafter mentioned, OHARA was and is a police officer acting within the scope of employment and under the color of duty of the City of New York and the New York City Police Department.
7. That at all times hereinafter mentioned, MARTINEZ was and is a police officer acting within the scope of employment and under the color of duty of the City of New York and the New York City Police Department.
8. That at all times hereinafter mentioned, SCHUMACHER was an is a police officer acting within the scope of employment and under the color of duty of the City of New York and the New York City Police Department.
9. That at all times hereinafter mentioned, DOE were police officers acting within their scope of employment and under the color of duty of the City of New York and the New York City Police Department.
10. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with

a principal place of business located at 1 Centre Street, County of New York, City and State of New York.

11. That at all times hereinafter mentioned, Defendant New York City Police Department, was and is an agency created and maintained by the above municipal government.

12. On or about December 27, 2018 the notice required by Municipal Law 50-E was given to the City of New York, by personal service. Said notice set forth the facts underlying Plaintiff's claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

13. On or about October 2, 2019 a hearing required Municipal Law 50-H was conducted. At said hearing, Plaintiff testified and set forth facts underlying Plaintiff's claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

14. That on or about November 28, 2018 at approximately 3:50 A.M. in the vicinity 125 Pine Street, Brooklyn, New York, Plaintiff was lawfully a visitor to those premises.

15. That on or about November 28, 2018, at approximately 3:50 A.M. in the vicinity of 125 Pine Street, Brooklyn, New York, Defendants OHARA, MARTINEZ, SCHUMACHER and DOE entered the location and approached Plaintiff wherein they handcuffed and arrested the Plaintiff.

16. At no time was Plaintiff engaged in any criminal or unlawful activity.

17. That at no time was Plaintiff in possession of any controlled substances.

18. That at no time was Plaintiff in possession of marijuana.
19. That at no time did Plaintiff reside at the above referenced premises, 125 Pine Street, Brooklyn, New York.
20. Thereafter Plaintiff was arrested and transported to the 75th Precinct.
21. That while Plaintiff was in the 75th Precinct, he was searched and nothing of an illegal nature was recovered.
22. That after being held in a cell inside of the 75th Precinct for several days Plaintiff was transported to Central Booking.
23. That after being held at Central Booking for a few days, Plaintiff was released from custody.
24. That the Kings County declined to prosecute after holding Plaintiff for several days.

**AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

25. That Defendants acted with actual malice toward Plaintiff and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
26. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
27. That as a result of the actions by Defendants, Plaintiff was traumatized and fears for his physical safety when he sees and encounters members of the New York City Police Department from the day of his arrest and onward.
28. That as a result of Defendants actions, Plaintiff has been unable to sleep.
29. That as a result of Defendants actions, Plaintiff has been unable to maintain employment.

30. That as a result of the Defendants actions, Plaintiff sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

31. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 – 30 as if more fully stated herein at length.

32. The intentional verbal abuse, false arrest, and false imprisonment by Defendants violated the rights of Plaintiff as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendant are individually liable.

33. Defendants having no lawful authority to arrest Plaintiff, did, nevertheless unlawfully arrest Plaintiff with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorneys fees.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

34. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-31 as if more fully stated herein at length.

35. Defendants conspired to violate Plaintiff's statutory civil rights in violation of 42 U.S.C. sec 1983, et al as well as the corresponding sections of the New York State

Constitution, for which Defendants are individually liable. Thus, Plaintiff is entitled to both compensatory and exemplary damages, as well as attorneys fees.

**AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

36. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-35 as if more fully stated herein at length.

37. That at all times pertinent hereto, OHARA was acting within the scope of his employment as an officer of the New York City Police Department and the City of New York.

38. That at all times pertinent hereto, MARTINEZ was acting within the scope of his employment as an officer of the New York City Police Department and the City of New York.

39. That at all times pertinent hereto, SCHUMACHER was acting within the scope of his employment as an officer of the New York City Police Department and the City of New York.

40. That at all times pertinent hereto, DOE was acting within the scope of their employment as officers of the New York City Police Department and the City of New York.

41. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff suffer physical and severe emotional distress for which the Defendants are individually liable.

42. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with

deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

43. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.

44. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.

45. That Defendants City of New York and the New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that OHARA, MARTINEZ, SCHUMACHER and DOE committed within the scope of their employment.

**AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

46. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1-45 as if more fully states herein at length.

47. The City of New York and the New York City Police Department's failure to provide adequate training and supervision to OHARA, MARTINEZ, SCHUMACHER and DOE constitute a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

**AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DARVIN NUNEZ**

48. Plaintiff repeats, reiterates, and realleges the allegations contained in paragraphs 1-47 as if more fully states herein at length.

49. Upon information and belief, the City of New York and the New York City Police Department maintained a system of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff.

50. Upon information and belief, the City of New York and the New York City Police Department maintained a system of review police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff.

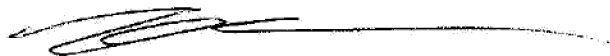
51. That by reason of the foregoing, Plaintiff has suffered damages in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, said amount to be determined upon the trial of this action.

WHEREFORE, Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the First Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the Second Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon

the trial of this action; Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the Third Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the Fourth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the Fifth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action; Plaintiff, DARVIN NUNEZ demands judgment against the respective Defendants in the Sixth Cause of Action in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, and said amount to be determined upon the trial of this action, together with costs, disbursements and punitive damages in an amount to be determined at the time of trial in the within action including any statutory attorneys fees and disbursements pursuant to 42 U.S.C §1983 and for such other and further relief as to this Court may deem just and proper.

Dated: Garden City, New York
February 24, 2020

Yours, etc.



LAW OFFICES OF MITCHELL C.
ELMAN, P.C.
377 Oak Street Suite 415
Garden City, NY 11530
(516)586-6666

VERIFICATION

STATE OF NEW YORK)
)ss.:
COUNTY OF NASSAU)

I the undersigned, an attorney duly admitted to practice law in the State of New York, under penalties of perjury do affirm:

That I am the attorney of record for the Plaintiff in the within matter, and make this affirmation in accordance with C.P.L.R. §3020. I have read the within COMPLAINT and know the contents thereof to be true to your Affirmant's own knowledge, with the exception of those matters therein stated to be alleged upon which your Affirmant bases his belief regarding those matters based upon the contents of the file and conversations with the Plaintiff.

This verification is made by your Affirmant and not by Plaintiff for the following reason(s): that the Plaintiff resides in a different county than where your Affirmant maintains an office.

Dated: Garden City, New York
 February 24, 2020



Mitchell C. Elman

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS:

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DARVIN NUNEZ,

Plaintiff,

Index No.:

-against-

VERIFIED COMPLAINT

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OFFICERS JOHN AND JANE DOE # 1-10
(intended as police officers whose names and
identifying information are unknown)

Defendants.

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